

Gender and the law



Definition

- Gender is a social attribute ascribing some **characteristics** or **norms** and **modes of behavior** to the female and other to the male sex.
- The gender of a person is **determined** by the society and by its way of up bringing children.
- Gender is, therefore, the result of the interaction of culture, religion, and similar factor of a society.
- It refers to historically defined **identities, roles and behaviors** of different groups such as men-women, girls-boys, old men-old women, etc

The difference between sex and gender?

- Sex refers to biological and physical characteristics i.e. being male or female.
- It is natural and can not be changed.
- Gender refers to socially constructed roles of women and men ascribed to them on the basis of their sex.

Gender roles

- Gender roles are **practices and activities** carried out by men and women which lead to **socially constructed division of labor**. There are three main categories of gender Role, they are:
 - **Reproductive role:-** Involve the care and maintenance of household and its members including bearing and caring for children.
 - **Productive role:-** involves the production of goods and services for consumption and trade.
 - **Community Role:-** Involves the collective organization of social events and services.

Gender role:-

- Depends on a particular socio-economic political and cultural context.
- Learned and vary widely within and between cultures.
- Can be changed.
- Helps to determine both sexes access to rights, resources and opportunities.

Historical perspectives on the legal status of women in the Glob

THE FIRST PHASE

UN charter refer to the "equal rights of men and women" as they declared the Organization's "faith in fundamental human rights" and the "dignity and worth of the human person".

- During this phase the work of the UN on behalf of women focused primarily on:
 - the codification of women's legal and civil rights,
 - the gathering of data on the status of women around the world

The second phase

The four international women conference (1975-1995)

- Four world conferences on women convened by the UN have been instrumental in elevating the cause of gender equality to the very center of the global agenda
- 1. *The Mexico City conference:*
 - opening worldwide dialogue on gender equality
 - It was called for by the UNGA to develop effective strategies and plans of action for the advancement of women
- ❖ THE UNGA set three objectives
 - elimination of gender discrimination;
 - participation of women in development;
 - A contribution of women in the strengthening of world peace

❖ It was concluded by:

- adopting a World Plan of Action
- set minimum targets at 1980 securing equal access for women to resources such as:
 - ✓ education,
 - ✓ employment opportunities,
 - ✓ political participation,
 - ✓ health services,
 - ✓ housing,
 - ✓ nutrition and
 - ✓ family planning.

Contribution

- ❖ change of perception
 - recipients of support and assistance to full and equal partners with men, with equal rights to resources and opportunities
 - Dev't served to advance women, to dev't was not possible without the full participation of women

- 127 Member States established some form of **national machinery, institutions** dealing with women's advancement and participation in development
- led to the establishment of the International Research and Training Institute for the Advancement of Women (INSTRAW) and the UN Development Fund for Women (UNIFEM)

2. The Copenhagen: The Review Process begins..1980

- held to review and appraise the 1975 World Plan of Action
- In 1979 CEDAW adopted and signed by 165 states
- An Optional Protocol to the Convention, enabling women victims of sex discrimination to submit complaints in 1999

Draw backs identified

- signs of disparity between rights secured and women's ability to exercise these rights

Factors contributing for women to be un able to use their rights. These were:

- Lack of sufficient involvement of men
- Insufficient political will;
- Lack of recognition on the value of women's contributions to society;
- Lack of attention to the particular needs of women in planning;
- A shortage of women in decision-making positions;
- Insufficient services to support the role of women in national life, such as co-operatives, day-care centers and credit facilities;
- Overall lack of necessary financial resources;
- Lack of awareness among women about the opportunities available to them

To address this issue the conference identified three specified areas that needs focused attention

These three areas were

- *equal access to education,*
- *employment opportunities and*
- *adequate health care services*

More over

It emphasis on stronger national measures to

- ensure women's ownership and control of property,
- improvements in women's rights to inheritance,
- child custody and loss of nationality

3. *Nairobi: "The Birth of Global Feminism"* 1985

- The women's movement become unified
- Improvements in the status of **women and efforts to reduce discrimination had benefited** only a small minority of women and too marginal in developing states
- This realization demanded that a new approach be adopted
- **The Nairobi Forward-Looking Strategies** to the Year 2000, the strategy developed and adopted
- It broke new ground as it declared **all issues to be women's issues** as a matter of necessity

Three basic categories of measures were identified:

- Constitutional and legal steps;
- Equality in social participation;
- Equality in political participation and decision-making.
- Strategies covered a wide range of subjects, from employment, health, education and social services, to industry, science, communications and the environment
- The Conference urged governments to delegate responsibilities for women's issues to all institutional offices and programs
- introduced a wider approach to the advancement of women (women's perspective and active involvement on all issues, not only women's issues)

4. Beijing: Legacy of Success (1995)

- The previous efforts had helped to improve women's conditions and access to resources
- But, they had not been able to change **the basic structure of inequality** in the r/s b/n men& women
- Decisions that affected all people's lives were still being made mostly by men
- In the past conferences the focus was women's full participation in decision-making, and women's perspectives were incorporated into political, social and economic affairs
- The fundamental transformation is the recognition of the need **to shift the focus from women to the concept of gender**

- recognizing that the entire structure of society, and all r/n b/n men and women had to be **re-evaluated**
- Only by such a fundamental restructuring of society and its institutions could women be fully empowered to take their rightful place
- it unanimously adopted *the Beijing Declaration and Platform for Action*, which was an agenda for women's empowerment
- The Platform for Action specified **twelve critical areas of concern** as main obstacles to women's advancement and which required concrete action by the government and civil society

- Women and poverty
- Education and training of women;
- Women and health;
- Violence against women;
- Women and armed conflict;
- Women and the economy;
- Women in power and decision-making;
- Institutional mechanisms for the advancement of women;
- Human rights of women;
- Women and the media;
- Women and the environment;
- The girl child.

- By adopting the Beijing Platform for Action, gov't committed themselves to the **effective inclusion of a gender dimension** throughout all their institutions, policies, planning decision-making
- It introduced **gender mainstreaming**
- Before decisions were to be made or plans to be implemented, an analysis should always be made of **the effects on, and needs of, both women and men**
- The introduction of **gender mainstreaming** called for the re-examination of society in its entirety and its basic structure of inequality

- the UNGA called upon all States, the UN system and other international organizations, as well as NGOs and the private sector to take action to implement its recommendations
- **national machineries** were assigned a new function as the **central policy-coordinating** unit to mainstream a gender perspective throughout all institutions and programs
- The Beijing Conference was considered a great success, both in terms of its size and its outcome

Historical perspectives on the legal status of women in Ethiopia



- “Horrendous” traditional practices, such as FGM, abduction, marital rape and early marriages practiced for a long period of time
- Some progress has been made despite great socio-economic, political and cultural odds.
- The 1995 constitution Art.35 and 36
- A new family code has been adopted by some of the regional states and
- a new criminal code has come into effect
- The punishment for some HTRP increased like rape

Human rights of women in eth.

- Ethiopia ratified both the UN Charter, UDHR and other international H.R instrument
- These instruments prohibit the negative discrimination of women based on their sex.
- UDHR art.16, ICCPR Art.3, 6(5), 23, ICESCR art.3 and 7, CRC art.2, AHPRC art 18, ACRC art.15, different ILO convention on working condition of women's
- Ethiopia ratified CEDAW in 1981
- CEDAW outlines political, social, economic, and legislative issues that States have to work on to eliminate discrimination against women and create equality between men and women
- It reported so many times the implementation of CEDAW

The 1995 FDRE constitution

➤ Art.7, 25, 9, 10,35, 42, 89

- From its preamble it assures women of equal rights with men in every sphere
- affirmative actions would be taken in order to remedy the sufferings of women because of past inequalities
- It recognized the rights of women to own and administer property
- It affirm women's right to family planning services and to paid pre-and post-delivery maternity leaves
- a number of strides have been made in the past few years in amending discriminatory laws

LEGISLATIVE MEASURE

- the pension benefits of women civil servants is given to their survivors
- Rural Land administration and use proc. 456/1997
- Labor proclamation 377/1996
- Civil servant proclamation 515/1999
- Higher education proclamation 650/2001
- Proc to determine the power of the federal executive 691/2003
- the criminal and family law has been revised
- Basic events registration proclamation proc.760/2004
- Many of the concerns that were included in the **Beijing Platform** had been considered and placed at the priority list of the Ethiopian government

- The MDG:- enabling all children to complete full course of elementary school and eliminating the gender gap at all levels of education in 2015
- Though ambitious The goals would reinforce the implementation of CEDAW, Beijing Plus Five

Labor proclamation The Civil Service Proc.

- No discrimination based on sex
- preference for female candidate
- pregnant entitled to paid leave for a medical examination before delivery if recommended by a doctor
- paid leave of 30 days before delivery and 60 days after delivery
- H.e issues like training and promotion do not seem to take gender issues into account.

Political Participation:

- In the Ethiopian context, for a woman to hold a key position in politics, economics, and administration is a difficult task
- Women have a marginal position in accessing and succeeding in their education
- the majority of women in the civil service are in clerical and manual jobs
- It is difficult to see many women in key positions both in politics and administration

SUMMARY

Even if the country adopted the above measure not much progress has been observed due to

high illiteracy rate, deep-rooted gender stereotyped cultural beliefs and practices, and lack of resources including qualified human labor

National policies and inputs on promotion of gender equality

1. the economic Policy and its strategy ADLI

- One of the eight issues under the investment program is the participation of women
- women would be provided with credit services and inputs that would enable to increase their productivity;
- conditions will be created to enable women to attend schools and to persist in their education with a view to, improving their chance of holding decision making positions at various levels; and
- encouraging women's participation in modern economic activities
- H.e women's issue has not been mainstreamed in all the sector

Women's national policy

- Designed to creating and facilitating conditions for equality between men and women,
- creating conditions to make women beneficiaries of social services like education and health,
- eliminating stereotypes, and discriminatory perception and practices that constrain the equality of women
- To achieve this
 1. the participation of women in the formulation of policies, laws, rules and regulations, and
 2. ensuring the democratic and human right of women

- The structures were clearly put delineating the responsibilities of the Women's Affairs Office (WAO)



- H.e researches show that both the (WAO) and the (WAD) lack capacity: they have problems with resources and qualified personnel
- In many cases WADs are marginalized and gender is not mainstreamed in many of the activities in the ministries
- The structure has problems reaching the grassroots since it stops at the Woreda level

The National Population Policy

- gives serious attention to the issue of gender and describes the important roles women play in controlling population growth
- Many of the strategies revolve around empowering women through education, employment in both government and private sectors and eliminating cultural and legal barriers

The Ethiopian Education and Training Policy

- introduce a system of education that would rectify the misconceptions and misunderstandings regarding the roles and benefits of female education

- the design and dev't of curriculum and books would give special attention to gender issues
- equal attention would be given to female participants when selecting teachers; training them, and advancing their careers
- Capacity building of female teachers, guidance and counseling services for female students, and awareness creation in the community

The Health Policy

- The policy accords special attention to the health needs of the family, particularly women and children

The Cultural Policy

- the cultural behaviors, practices, and attitudes that support and promote stereotypes and prejudices against women, those that constrain the expansion of family planning services and the promotion of reproductive health should be slowly eliminate
- situations should be created to promote the equality of the sexes
- not include in what ways could achieve the gender equality indicated in the policy and
- No the means to eliminate harmful practices

The Development Social Welfare Policy

- It acknowledges that war, famine, economic crises of the past harmed vulnerable groups and makes these groups the Policy's central focus
- women are underrepresented in every sphere including education, employment, politics, and other key decision making position
- one of the major causes of social problems is the economic dependence of women on men
- it does not say anything about the special problems females encounter as children, parents, youth, the elderly, and the disabled,
- nor does it mention the measures that need to be taken to alleviate their problems

- Community participation, partnership and coordination, capacity building of actors
- advocacy and awareness creation, implementation of international conventions and other social welfare related laws, and the establishment of data bank system
- the issues of gender will be mainstreamed in all programs, projects, and services in addressing the target groups

The Federal Policy on Natural Resources and the Environment

- it gives importance to a **participatory approach** and the **feeling of ownership** in developing and conserving natural resources and an important place is given to gender
- Giving a high priority to raising the status of women by increasing female participation in the education system
- Increasing the number of **women extension agents** in natural resource and environmental management
- addressing gender issues by ensuring that energy plans adequately address fuel-wood requirement
- providing support to women in mineral development with special practical training and technical assistance particularly in small-scale and artisan mining.

Institutional machinery

The Women's Affairs Office (WAO):- charged with the responsibility of coordinating, facilitating and monitoring all go't gender programs, particularly the implementation of the National Women's Policy

- *Centre for Research Training and Information for Women in Development (CERTWID)*
- to enable women to empower themselves socially, culturally, economically and politically so as to be active participants as well as equal beneficiaries of the development process
- This goal is realized through its research, training, and documentation activities.

Impact of globalization on women

Its positive impacts:

- *Employment opportunities* for women especially in developed countries.
- *Education and knowledge* which constitutes a huge advancement in the empowerment of women especially in terms of sharing inf'n.
- Exploitation with low wage and low working
- Environmental degradation
- Climatic change, resulting flooding and drought, has affected the production system where women are in turn affected

- In Ethiopia there are three major constraints to women benefit from globalization:-

1. lack of proper infrastructure or other communication channel,
2. low level of education and
3. language barrier

Gender socialization

- Socialization, as a process of transmitting culture, consisting of “complex process of interaction through w/h the individual learns the habits, beliefs, skills and standards of judgment that are necessary for effective participation in social groups and communities
- it is a process, w/h not only allows the baby to know about the basic norms of the society, but also helps in the gradual dev't of one's self.
- Thus the child comes to learn about the norms, expectations and different roles to be played in the group through the process of socialization.

- A child learns about his/her *gender* identity by learning what is s/he expected to do by others
- For instance, a male child learns to conform to his own gender group by neglecting all activities that a girl child does.
- The very first thing the child is socialized into is the views regarding his/her gender identity
- Socially constituted gender roles form stereotypes
- Individuals are converted from biological male and biological female into man and woman respectively with the process of socialization, which takes up the task of gendering individuals

- socialization takes place through *four* processes,

1. **manipulation**: refers to how a child is handed

2. **canalization**;-involves the familiarization of boys and girls with certain objects, which later shapes their perceptions, aspirations and dreams

3. **Verbal appellation** likes “strong” for boys and “beautiful” for girls help them construct d/t identities.
Strength vs beauty

4. **activity exposure** pertains to different kinds activities, boys and girls are exposed to. Girls are asked for help by their mothers and boys usually accompany their fathers outside the house

- the basic difference between a man and a woman does not seem to have any genetic foundation.
- It is the result of one's culture, which is injected into an individual through socialization process

Gender construction: a psychoanalytic view

- At a very early stage, the little boy develops an object-cathexis of his mother, which is originally related to the mother's breast
- this two r/s exist side by side, until the sexual wishes in regards the mother become intense and the father is perceived as an obstacle to them; this gives rise to the **Oedipus complex**
- So, “in repressing the erotic feelings towards the mother and accepting the father as superior being, the boy identifies with the father and become aware of his male identity

Cultural construction of masculinity and femininity

- Women considered as passive with Tenderness consideration and physical weakness
- The masculine is defined as dominant and encouraging male violence against women
- Men are supposed to be high on strength and prowess
- Men speak the language of right and women the language of responsibility
- Right from their childhood, boys attempt to dominate and control.
- But girls are encouraged to be good mothers. So the first thing they do is attract a man to depend on
- Women valued for their look or smallness but not their strength and brains

- Men's predominance in the public domain and their association with reason distanced them from talking about relationships
- Right from their childhood, men have been treated by their parents as independent and out going
- Culture has made women more expressive and their expressiveness is confused with the display of weaknesses.
- Men's silence on problems has been mistaken for strength and courage but this is not the truth

Patriarchy and its structures

- Patriarchy refers to male domination and female's acceptance and internalization of that dominance (the supremacy of the father)
- It is a system of social structures and practices in w/h men dominate, oppress and exploit women
- Most of the institutions of the society are patriarchal in nature, (state, religion, family)
- Culture itself has certain demands from male and female separately. This male dominant society has **looked down upon women.**
- Women tend to stress on relationships and responsibility while men emphasize rules and rights

- The society claimed that the dev't of the child requires the mother to devote herself completely to the welfare of the child and it is the primary duty of the mother to shower all kinds of affection and care to the child
- The father is not expected to carry out such duties.
- Since men lack a natural basis meant for family orientation, i.e., they do not reproduce, the cultural reasoning seems to go that men are the 'natural' proprietors of religion, ritual, politics, and other realms of cultural thought
- Women were allocated domestic service and attending upon children while men did the rest
- Thus men are associated with culture, i.e., the higher form of human thought involving art, religion and law

Work and Gender

- Men were more exposed to the outside world, thus becoming an integral part of the public sphere due to their participation in local affairs, politics and the market.
- But women were relegated to the domestic sphere.
- Mostly, jobs stand gendered. Women traditionally have been doing household works like cooking and taking care of children. Thus, certain jobs have been branded feminine and masculine.
- There is occupational segregation based on gender as men and women being concentrated in different kinds of occupation.

Occupational segregation has two dimensions, vertical and horizontal.

- “Vertical segregation” refers to the tendency of women to remain in the second position, whereas men remain in influential position.
- “Horizontal segregation” refers to the tendency of men and women to occupy different categories of jobs. Women shouldered the responsibility of taking on household tasks, while men were mostly seen in jobs outside home.
- Things get extremely difficult for women who are working because they have to bear the double burden of domestic work, as well as work place

Technology

- Media is one of the most i/t socializing agents.
- Media transmit values and attitudes that highly affect the attitude and behavior of individuals
- The issue of women and media can be looked at from *three* perspectives: women's portrayal, the content, and women as media consumers
- women and men are portrayed in stereotypical ways, more intensified in many developing countries
- Women tend to be portrayed in roles in which they are trivialized, condemned, or narrowly defined,
- doing domestic chores, or appearing as sex objects and sometimes, they are presented to be selfish and cruel
- Men are usually depicted in high-status jobs in which they dominate women

Women as media consumer:-

- Many women do not receive information from the media
- Information is at the heart of education; it is the basis of health; it defines every aspect of production, distribution and exchange; and it defines social relationship at all levels.
- ICTs have the potential to reduce poverty, empower people and facilitate the democratization process.
- However, it can also widen the gaps between the haves and the have-nots and between women and men.
- The voice and concern of women being further marginalized

- There are a number of constraints women encounter in accessing information using ICTs
- These include low literacy, limited access to resources and decision-making, limited or no access to computers, limited telecommunication infrastructure, unreliable telephone line, high cost of telephone calls, and lack of time.
- Women who have access usually use ICTs for work purposes, and not for personal growth.
- Even in their work women's utilization of ICTs is often limited to using e-mails.

Theoretical foundation of gender equality



2.1 Gender equality

- It refers to equal valuing of the roles of women and men.
- both sexes are able to equally contribute to any social, cultural and political developments within a society
- Gender inequality is the result of social, economic, and political differences not the difference in their sex

- ***2.1.1 Social inequality***

- Women and men usually have different roles and responsibilities in their daily lives. Women have the main responsibility of taking care of children and the elderly and providing food for the family while men do works outside the house.
- Women have unequal access to education and health services.
- Social customs that encourage or force girls into teenage marriages
- There are a high level of incidence of violence against women in all countries around the world which are accepted as 'normal'.

2.1.2 Economic inequality

- Nearly 70% of the worlds poor are female.
- Women have unequal access to economic resources, such as capital, credit, limited opportunity for employment and career advancement which restricts and affect their economic situation.
- Females have unequal access to education and training opportunities which makes them to concentrate on unskilled and low status jobs.

- ***2.1.3 Political and legal in equality***
- Women are very poorly represented at all levels of formal decision making both at regional and national levels.
- The legal system in many countries discriminates against women especially in the areas of **inheritance, property and land ownership, and criminal law**

Models of equality and approaches

2.2.1 The formal model of equality

- It regards men and women as being the same and sets out **to treat women the same as men**
- They argue for the provision of equal opportunities for women but will go on to expect women to access the opportunities and perform according to the same rules and standards as men
- it does not take into consideration the biological and gender d/fces b/n women and men
- This places a great pressure on women who have to perform according to male standards.

- In formal equality terms, the goal is equal treatment for all, not just women

2.2.2 The substantive model of equality(CEDAW)

- The convention promotes the substantive model of equality and consolidates two central approaches to equality
- **equality of opportunity** in terms of women's access on equal terms with men to the resources of a country. (the obligation of means)
- **Equality of result:-** the measure of a state's action to secure the human rights of women and men needs to ensure *equality of results* (obligation of result)
- The indicators of state progress lie not just in what the state does, but in what the state achieves in terms of real change for women

- It is not concerned much with equal treatment but with equal access and equal benefits.
- Hence it recognizes that women and men may have to be **treated differently** in order for them to benefit equally.
- This may take the form of providing **enabling conditions** and/ or **affirmative action**
- that formal equality, often manifested in a **gender-neutral framing of policy or law**, may not be sufficient to ensure that women enjoy the same rights as men and ensure equality

- This is because of the fact that women and men are not the same.
- Differences between women and men whether based on biological **(sex)** difference or socially created **(gender)** differences results in women's asymmetrical experience of: **Disparity, Disadvantage, Difference**
- Initiatives for the realization of women's rights need to compensate for the difference, disparity or disadvantage.
- This means taking into account the **ways** in which women are different from men, and ensuring that these differences are acknowledged and responded to by policy or legal interventions and programs

- The substantive model of equality promotes the **corrective approach**.
- It believes that women are in an unequal position b/c they face current discrimination, or bearing the effects of past discrimination, or that the environment, at the family and public levels, is hostile to women's autonomy.
- It requires that **socially constructed differences** such as the traditional roles ascribed to women and men as well as **cultural practices** that see women as inferior need to be changed

- To overcome the problem it proposed
 1. **enabling conditions**, in the form of the basic social, economic and cultural contexts within which women may be able to lead their lives with dignity
 2. **affirmative action** in the form of temporary special measures where women's needs are specially recognized and catered for in the context of employment, education, financial services, politics and all other spheres of life

Summary:- the obligation of the state is to ensure a broad approach to equality that includes:

- **Equality of opportunity,**
- **Equality of access to the opportunity and**
- **Equality of results**

The protectionist approach



- This is the **protectionist** approach that would require that women be barred from doing certain things in their own interest
- Protectionist approaches see the differences between women and men but constitute these differences as weakness or inferiority in women.
- If night work is unsafe for women, it is diagnosed that women are weak, not that the environment is unsafe.
- The solution then is to control or correct the women and not to correct the environment or provide support for women to cope with an unsafe environment.
- In this sense the difference is considered to be naturally ordained and the approach serves to reinforce the subordinate status of women

Resistance to the substantive approach to equality

- employers and others will see that ensuring *de facto* equality may bring an extra burden and as incurring extra costs

While it is true there are costs involved, we need to develop arguments to justify these costs

- the first is on the basis of human rights principles:- Since the Convention promotes the substantive model of equality the State has accepted an obligation to ensure that women will be able to enjoy all rights
- they are also obligated to regulate all agencies including the private sector to ensure of this even if it means incurring additional costs

- The second argument is based on long-term benefits to the country.

- Keeping half the population in a subordinated position also incurs costs as they fall into a dependent category instead of a productive category and have to be provided for.
- While social change may come at a price, it is often far more sustainable and transformatory in the long term if it represents a move from dependency to autonomy.

The need for a broad approach to equality

- equality in the substance of the legal texts
- equal treatment under the law,
- access to the law and its institutions
- the de facto enjoyment of equal rights
- ❑ Where there is no such differentiated equality rights, equality law has had little impact on disadvantaged groups

Chapter three

Gender and family

Traditional marriage and its consequence on women

- While child marriage affects both sexes, girls are disproportionately affected as they are the majority of the victims
- Child marriage is now widely recognized as a violation of children's rights
- It is a direct form of discrimination against the girl child who as a result deprived of her basic rights to health, education, development and equality.
- *Tradition, religion and poverty continue to fuel the practice of child marriage,*

- early marriage is one of the most HTP as it usually denies girls educational opportunities, leads to poverty and economic insecurity and has a serious negative impact on their health and decision-making capacities.
- It also reinforces other forms of gender-based violence and problems.
- It is rampant in Ethiopia, although prevalence varies from one region to another
- At the national level, 62% of Ethiopian women aged 20-49 get married before the age of 18

Types of early marriage

- **promissory marriage:-** a verbal promise is made at infancy or even childbirth by the parents to have their children married
- **child marriage:-** children under the age of 10 are wedded
- **adolescent marriage:-** involves girls aged between 10 and 15
- In most cases, the child bride is taken to her in-laws immediately after the wedding;
- in other cases the parents agree that the girl stays with her parents until she is mature enough to live with her husband

- Article 21 of the 1990 African Charter on the Right and Welfare of the Child states that “Child marriage and betrothal of girls and boys shall be prohibited and the minimum age of marriage to be 18 years.”
- the newly adopted family codes and criminal law of Ethiopia acknowledge the minimum age of marriage for women to be 18 years and state that marriage shall only take place with full consent of both parties

Forced marriage:- any child marriage constitutes a forced marriage since anyone under the age of 18 is not able to make a fully informed choice

Causes of early marriage

1 Poverty and economic transactions

- a young girl may be regarded as an economic burden and her marriage believed to benefit the child and her family both financially and socially
- A daughter may be the only commodity a family has to be traded and sometimes girls can be used as currency or to settle debts.
- A girl's marriage may also take place as a perceived means of creating stability.
- the practice of paying bride price can encourage early marriage

2 Notions of morality and honor

- the strongest reason for early marriage is the desire or need to maintain the family's good name and social standing
- It believed that a girl brings shame to her family if she was not a virgin when she married.
- Young girls may also be encouraged to marry older men, due to the perception that an older husband will be able to act as a guardian against behavior deemed immoral and inappropriate

- Reasons for getting married (in order of importance):

- 1. It is a tradition



- 2. To strengthen relationships

- 3. For prestige

- 4. Difficult to get married if older

- 5. The family will be victim of gossip

- 6. To earn dowry

- 7. To protect virginity and avoid premarital sex.

- Some, are not even informed about the wedding before the decision was made, and are not asked for their consent, or do not know the groom before the wedding

Consequences for health and well-being

1. ***Marital instability*** :-Among the respondents, about 27% of marriages in urban areas and 19% in rural areas had ended in divorce or separation
 - 56% reported that their first marriage ended either because they were too young
2. ***Termination of education:-*** better-educated women are more likely to use contraception, bear fewer children, raise healthier children, and make better decisions for themselves and their children and to make greater economic contributions to the household
 - among out-of-school respondents, 28% cited marriage and 19% cited childrearing obligations as their reasons for quitting school
 - 4% cited their husbands' disapproval of their school

3. Inability to plan or manage families

- likely to bear more children
- exercise less influence and control over their children and
- have less ability to make decisions about their nutrition, health care and household management

4. Impact on sexual health of women and girls

- Complications due to pregnancy at a young age frequently include obstetric fistula

5. Vulnerability to HIV infection:- increase married girls' exposure to the virus, especially as older husbands may engage in unprotected sexual relations with other partners

- **Maternal mortality:**-Young mothers face higher risks during pregnancies including complications such as heavy bleeding, [fistula](#), infection, anemia, and eclampsia which contribute to higher mortality rates of both mother and child
- It has also consequences on **the social development** of child brides, in terms of low levels of education, poor health and lack of agency and personal autonomy.
- Women who marry early are more likely to suffer abuse and violence, which have inevitable psychological as well as physical consequences

Law and early marriage

Art.648 of the new criminal code

- rigorous imprisonment not exceeding three years, where the age of the victim is thirteen years or above; or
- rigorous imprisonment not exceeding seven years, where the age of the victim is below 13 years.

Family law

- Art. 7 of RFC a person not attained the full age of eighteen years shall conclude marriage.
- **In case of age, by the parents of the minor, public prosecutor or any other interested person**

Global and comparative approaches to violence against women within and outside family

- **Defining Violence against Women**
- Declaration on the Elimination of Violence against Women define VAW as “any act of gender-based violence that results in, or is likely to result in, physical, sexual, or psychological harm or suffering to women, including threats of such acts, coercion or arbitrary deprivation of liberty, whether occurring in public or private life.”

- Though the specific causes of VAW vary on a case-by-case basis, some researchers have identified **community and individual risk factors** that may increase rates of violence against women.
- **Community factors** may include cultural norms that support male superiority, high crime levels, poor economic conditions, and a lack of political and legal protection from governments
- **Individual factors** that may lead to a high risk of becoming a victim of VAW include living in poverty and a previous history of abuse

Social and Health Consequences

Social Consequences



- It negatively affect the ability of women and girls to participate fully in and contribute to their communities
- less likely for victims to hold jobs and are more likely to live in poverty than those who do not experience violence
- It forces victims to avoid public places such as schools and the workplace
- less likely to participate in political activities or development projects because of the threat of physical violence
- contributes to low female enrollment rates and high dropout rates from secondary school

Health consequence

- increased risk of poor physical and reproductive health
- The physical health impacts of VAW can be divided into two categories
 1. Immediate consequences:-fractures, gunshot wounds, bruises and lacerations, and death
 2. Functional consequences include long-term health consequences (gastrointestinal disorders, chronic pain (including pelvic pain), chronic urinary tract infections, and irritable bowel syndrome)

- ***Prevalence and Circumstances***

- b/n 10% and 69% of women have been physically hit or harmed by a male partner at some point in their lives
- women in developing countries may experience higher rates of violence than those in developed countries
- one in five women experiences rape or attempted rape during her lifetime

Non reporting of violence

- Many incidences of violence are **not reported** because of 1. the shame and fear associated with being a victim
2. victims view violence as normal or expected behavior
- in developing countries, lack of adequate law enforcement infrastructure and reporting services, which may discourage women from reporting

Places of the commission

- VAW can occur in the home as well as in public and private institutions, including the workplace, schools, universities, and state institutions
- **Custodial VAW**, which includes violence in prisons, immigration detention centers, social welfare institutions, and jails, is reported in many areas of the world (**most of the time unreported**)
- World Bank study found that approximately 22% of women reported being sexually abused in school
- in Ethiopia harassment and sexual abuse contributed to low female enrollment rates and high dropout rates from secondary school

Types of Violence

<i>Life Stage</i>	<i>Examples</i>
Infancy	Infanticide; psychological and physical abuse; differential access to food and medical care
Childhood	Female genital cutting; incest and sexual abuse; psychological abuse; differential access to food, medical care, and education; prostitution; trafficking; school-related gender-based violence
Adolescence	Dating and courtship violence; economically coerced sex; sexual abuse in the workplace; rape; sexual harassment; forced prostitution; trafficking; psychological abuse; forced marriage; dowry abuse; retribution for the crimes of others
Reproductive	Intimate partner abuse; marital rape; dowry abuse; honor killings; partner homicide; psychological abuse; sexual abuse in the workplace; abuse of women with disabilities; forced prostitution; trafficking
Old age	Widow abuse; elderly abuse; rape; neglect

1 Harmful Traditional Practices

- Traditional practices are part of local cultures and are generally considered socially acceptable; in some cases, they are encouraged by family members and the community
- HTP including FGM, intimate partner violence, and child marriage, perpetuate unbalanced sex stereotypes and a cycle of violence
- In some cultures, both men and women may view violence as a legitimate punishment for female disobedience and as a traditional part of male-female relationships
- In recent years, some international advocates have increasingly argued that HTP should be addressed through anti-VAW programs

2 Abduction

- In some regions of Ethiopia, abduction and rape is a cultural practice used to take a girl as wife by force
- with social and cultural pressure from families and the community, as well as threats from the offender, the girl will often "consent" to marry her perpetrator
- Both, abduction and rape are criminal offences under the Ethiopian law, but if marriage is subsequently agreed, the husband is *exempt* from criminal responsibility for his crimes
- Changing the law to adequately address the injustice that abducted and raped girls face is essential to the realization of the fundamental right to equality in Ethiopia

3.Rape

- *Webster's Dictionary* (1975) defines it as the 'illicit carnal knowledge of a woman without her consent, effected by force, duress, intimidation, or deception as to the nature of the act.
- the most commonly attributed causes of rape are inequality in gender power relations and the anger and sadism of the rapists
- In Ethiopia's case there is a range of other complex contributing factors, such as culture and tradition, poverty and war.
- Culturally transmitted assumptions about men's dominance over women, men's power over women
- Ethiopian culture tolerates sexual violence against girls and women since Abduction and early marriage, always followed by rape, are the norms in some parts of our society

- Poverty drives women and children into commercial sex and streets, which make them vulnerable to sexual exploitation, abuse and rape
- Rape is used in most wars as revenge against certain races, ethnic groups and religious communities. E.g ethio Eretria

2Consequences of Rape

1 *Psychological*:-Fear and phobia, repressed anger leading to overwhelming depression and anxiety, feeling of guilt, self-blame, shame, loss of control over oneself, immense shock and disbelief, confusion, difficulty in making decisions, hatred towards men, diminished self-esteem, feelings of worthlessness, fear of being alone, disobedience, aversion to sexual intercourse, thoughts of suicide, desire for revenge

2. Social:-lose their dignity and respect in society, alienate themselves from society, difficulty to get husband, prostitution



3 Economic:- due to rape or fear of rape girls do not pursue their education. As lack of education will also leave women unemployed, poor and powerless, violence perpetrated against them will continue unabated

4 Health:- lead to unwanted pregnancies and transmissions of STDs, including HIV/AIDS

- In Ethiopian law, there is no provision for the right to abort even in cases of rape
- they are forced to resort to illegal and unsafe options
- **Marital rape** is non-consensual sexual assault in which the perpetrator is the victim's spouse

5. Sexual harassment

There are two types of sexual harassment,

1. “quid pro quo” it means “this for that”.
 2. “Hostile environment”:- unreasonably interferes with a person’s work or academic performance or it creates an intimidating, hostile, abusive or offensive environment
- There are abundant cases of harassment in Ethiopia, but the law does not specifically criminalize it
 - The labor proclamation of 1993 (number 42/93) does not mention sexual harassment.

6 FGM:- cutting and removing parts or all of the female genitalia

- results serious problems during intercourse and child delivery, not to mention the psychological trauma

7. Forced prostitution

- It refers to conditions of control over a person who is coerced by another to engage in sexual activity
- It is a crime that violates human rights of emotional and physical integrity.
- In 1949 the UNGA adopted the [Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others](#)
- it imposes three obligation on the members
 - prohibition of trafficking,
 - specific administrative and enforcement measures, and
 - Social measures aimed at trafficked persons.

8. Forced marriage

- a marriage in which one or more of the parties is married without his or her consent or against his or her will
- it is different from arranged marriage
- it involve varying degrees of force, coercion or deception, ranging from emotional pressure by family or community members to abduction and imprisonment
- Reason for forced marriage includes:- Controlling unwanted behavior and sexuality; Peer group or family pressure; Attempting to strengthen family links; Ensuring land remains within the family; Protecting perceived religious and cultural ideals which are misguided; Preventing "unsuitable" relationships and Family honor
- Although there is no specific criminal offence of forcing someone to marry Perpetrators usually parents or family members have been prosecuted for offences including threatening behavior, harassment, assault, abduction and murder

- Many women forced into a marriage suffer for many years from domestic abuse
- *Isolation* is one of the biggest problems facing victims of forced marriage.
- The needs of victims of forced marriage includes:-Personal safety, Confidentiality, and Accurate information about rights and choices

9. Dowry abuse

- “A dowry is the money, goods, or estate that a woman brings to her new husband.
- Dowry abuse occurs when the husband's family continues to press the wife's family for more money or other gains after the marriage, and involves physical threats
- When the amount of dowry is not considered sufficient or is not forthcoming, the bride is often harassed, abused and made miserable.

10 Trafficking

- Human trafficking is the recruitment, transportation, harboring, or receipt of people for the purposes of slavery, forced labor (including bonded labor or debt bondage), and servitude
- Exploitation includes forcing people into prostitution or other forms of sexual exploitation, forced labor or services, slavery or practices similar to slavery, servitude or the removal of organs
- For children, exploitation may also include forced prostitution, illicit international adoption, trafficking for early marriage, or recruitment as child soldiers, beggars,
- Traffickers primarily target women because they are disproportionately affected by poverty and discrimination
- In the destination countries, women are subjected to physical violence, sexual assault and rape, battery, imprisonment, threats and other forms of coercion.

- Prevention of trafficking in women requires examining the factors that contribute to the problem as well as providing education to potential victims
- Avoid the factors that increase vulnerability to trafficking, including inequality, poverty and all forms of discrimination and prejudice
- Victims of trafficking face a range of needs including physical and mental health care, job training and employment issues, housing issues and, possibly, childcare
- The trafficking of women for sexual exploitation is an international, organized, criminal phenomenon that has grave consequences for the safety, welfare and human rights of its victims

Chapter Five

Women and Education



- Education is one of the most important factors that positively affect the life of people who have got access to it and the life of the society and the group they belongs to
- Though educ. is i/t for all and is recognized as one of the human rights in different international regional and national laws, all people have not got equal chance to exercise the right
- There is gender disparity in both enrollment and school completion rate.
- The number of out of school female children is higher than the number of male children out of school

- As indicated in the report of World Bank, world wide for every 100 boys out of school there are 132 girls and in some countries the gender gap is much wider.
- In the same report it is indicated that world wide the primary school completion rate in the year 2005 was 66% for female students and 76% for male students.
- World Bank identified poverty, adverse cultural practice, schooling quality, distance to schools, HIV/AIDS, orphan hood, conflicts, gender based violence, emergencies and other fragile factors that really cause gender disparity in school enrollment and completion

The importance of education for women's life

- Educated girls have more life choice and opportunities to participate in community life and decision-making
- Educated women tend to marry later and have fewer, healthier and better-nourished children
- Educated women yield the highest return in economic terms and
- Educated women have more exposure to information
- Women with formal schooling resist domestic violence more likely than those illiterates
- Educated women have greater wage earning opportunity

Importance of women education for the society at large



- Education reduce women's fertility rates
- Education of women lowers infant and child mortality rate
- Girls' education lowers maternal morality rates
- Girls' education reduces vulnerability of girls to HIV
- Girls' education increases women labor force participation rates and earning
- Girls' education creates intergenerational education benefits

Education and Ethiopian women

- Gender inequality in education is high in Ethiopia.
- The gender gap between girls and boys in primary and secondary school remained constant at 20%.
- Apart from the gender gap, there had also been a higher dropout and repetition rate among girls than boy
- CEDAW committee in 2004 indicated the high level of women illiteracy and high rate of dropout and repetition among Ethiopia girls
- Currently there is a growth in girls' enrollment both in primary and secondary schools though there is still a gap between boys and girls and women and men in the field of education

- Cultural, social, political and economic factors contribute to under participation and under achievement of women in education



1. Strong bias against investment in female education in rural Ethiopia
 - most cultures highly valued girls' contribution to household tasks and family livelihood
 - there is a belief that females are less competent than males and that education is wastage on them
2. the distance of the nearest school from the homestead especially in the rural areas and parents are not willing them to send far places for fear of abduction
3. Forced and early marriage
4. Rape and abduction
5. teenage pregnancy, child labor, parental sex preference, harassment, discrimination rate and inadequate treatment of girls in school

Is Education Right or Privilege?

- The notion that “elementary education is a fundamental right” is not accepted by all, at least not wholeheartedly.
- Some even perceive the universalization of education as a threat to the opportunities of their own children.
- In their view, the role of the schooling system is to act as a "filtering process", which picks the best and the brightest and helps them to realize their potential.
- If too many children get on board, the prospects of those who currently enjoy the privilege of good schooling facilities will be threatened

Education as a Human Right

- Its recognition in d/f h/r instrument as a human right is derived from the indispensability of education to the preservation and enhancement of the inherent dignity of the human person
- 1. **The UDHR-** under Article 20, *"Everyone has the right to education"*
 - it shall be free, at least in the elementary and fundamental stages
 - Elementary education shall be compulsory
 - Higher education shall be equally accessible to all on the basis of merit
- 2. **The ICESCR – Art. 13** everyone has the right to education and that educ. should contribute to the full dev't of the human personality
 - Primary education shall be compulsory and available free to all
 - Secondary education, including technical and vocational education, shall be made generally available and accessible to all by every appropriate means, in particular by the progressive introduction of free education

CRC- Articles 28 and 29 of the CRC deal with the right of the child to education

- Article 28 is similar to the provisions contained in ICESCR
- Article 29 stipulates that the education of the child shall be directed towards the development of the child's personality, talents, and mental and physical abilities to their fullest potential
- Recognizes the right of the family to choose the type of education and to control their child education

UNESCO Convention against Discrimination in Education

- parties must undertake to formulate, develop and apply a national policy which will tend to promote equality of opportunity and treatment, and, in particular, to make primary education free and compulsory

CEDAW-Article 10 of CEDAW also contains provisions dealing with the right to education

- equal access to career and vocational guidance and to studies at all educational levels;
- Access to the same curricula and examinations;
- elimination of stereotyping in the roles of women and men; and the same opportunities to benefit from academic scholarships

Regional instruments

-ACHPR (article 17), ACRWC recognize the right to education

FDRE Constitution:- Article 41(3) guarantees the right of Ethiopian nationals to have access to publicly funded social service which among others includes access to education

- 43(4) imposes obligation on the gov't to provide public education by allocating ever increasing resource
- It prohibited people from requiring or/and permitting children to do work which has hazardous or harmful effect on their education under Article 36(1) d

Content of the Right to Education and State Obligations

➤ the right to education encompass two broad components

1. enhancement of access of all to education on the basis of equality and nondiscrimination
2. freedom to choose the kind (public/private institutions) and content (religious and moral) of education

Four core elements

1. Equal enjoyment of, and equal access to, educational opportunities and facilities;
2. Compulsory and free primary education;
3. Generally available and accessible secondary education and equally accessible higher education and
4. Freedom of choice in education, and freedom to establish private institutions

- The CESCR, in its General Comment 13 identifies four elements of the state's obligations with respect to the right to education



1. **Availability**
2. **Accessibility:** for all w/o discrimination
3. **Acceptability:-** all schools conform to the minimum criteria which it has developed as well as ascertaining that education is acceptable both to parents and to children
 - the right to choose the type of education received, and the right to establish, maintain, manage and control private educational establishments
 - acceptability relates to the child-friendly nature of the schools
4. **Adaptability:-** the education system should remain adaptable, taking into account the best interests of the child

Gender Based Discrimination in Education

- the low level of women enrollment in education and school completion rate mainly relate to the distinction made on the basis of sex
- this has hazardous effect on the enjoyment of one of the human rights, right to education, by women
- the existing gender gap between female and male enrollment in education and school completion rate amounts to discrimination on the ground of gender as defined under Article 10 of CEDAW

Addressing Discrimination in Education

CEDAW provided for **temporary special measures** that refer to programs, policies, and laws that place them in a situation of comparative advantage to men for a limited period, with the aim of achieving substantive equality between the two sexes in the long term

- Adoption by states parties of temporary special measures aimed at accelerating *de facto* equality between men and women shall not be considered discrimination (Art. 4(1))
- As it aimed to accelerate de facto equality, temporary special measures may depart from **formal equality** in order to achieve **substantive equality** between men and women
- these measures shall be discontinued when the objective of equality of opportunity and treatment have been achieved
- states signatory to CEDAW including Ethiopia are duty bound to take temporary special measures in order to end gender based discrimination in education

Justification for temporary special measures

- 1. On the ground of compensatory justice:-** seeks to make up for past harms and disadvantages women suffered as a group
- 2. On the ground of distributive justice:-** is a forward-looking justification, oriented towards correcting current imbalances between women and men with respect to their access to the elements of a 'humane life
- 3. On the ground of Social utility:-** focuses on (i) mobilizing the economic and social potential of women for the common good of society, and (ii) encouraging and facilitating the social transformation and the promotion of diversity
- 4. On the ground of access to rights:-** such measures allow women to fully claim and realize their human rights since human rights are interdependent

Temporary Special Measures Taken by the Ethiopian Government

- It has taken affirmative action to increase enrolment of female students in the educational institutions at d/t level
- 30% of the total number of seats has been reserved for female student in higher educational institutions (universities)
- the introduction of girl's scholarship program
- the promotion of girls' education by rewarding individuals and institutions for their noble contribution
- The expansion of educational provisions
- The arrangement of tutorial class for female students,
- the increase in the number of women teachers and awareness raising activities

The specific actions that are being taken to influence policy are the following:

- Development of girls education policy
- Development of policy implementing strategy
- Incorporating the concept of gender mainstreaming in, *inter-alia*, curriculum development and parent's counseling
- Capacity building of head teachers in high schools and gender focal points in the regions to deal with gender matters
- Conducting research in the area in order to devise mechanisms for increased girls participation in primary, secondary and tertiary education

Chapter Six

Women and Employment

- there is gender based discrimination in access to employment as can be observed from the existing huge gender diff/cce in the labor force.
- The gap becomes wide as one goes from developed to developing countries.

The reason for this difference are:-

- Women's lower educational attainment due to lack of access to education and training opportunity
- the existing misconception about the role and contribution of women in employment
- the contribution of women in family labor, i.e. their family responsibility

- Women also often suffer employment discrimination because they need to take time off for maternity leave or when a child is sick.



Those women who have access to employment face many obstacles. This includes

- Most of the employed women are placed in lower grade and lower paid jobs.
- Elite women who wish to improve their legal and economic status must expect to lose honor and respect
- There is often sexism in job promotions and unpleasant consequences if women stand up to men.
- There is often more respect for male professionals (even from women themselves) than there is for female.

Gender Based Discrimination in Employment

- According to the 1958 Discrimination (Employment and Occupation) Convention It is discrimination on the ground of sex which has the effect of nullifying or impairing equality of opportunity or treatment in employment or occupation
- The discrimination may be de facto or de jure
- Sex discrimination can direct or indirect discrimination
- Employers may discriminate against women directly by limiting applications for certain jobs to only men or only women.
- Discrimination is indirect when employers impose criteria for applicants or specify characteristics which are not closely related to the inherent requirements of the job
- Several countries mention acts of discrimination on the basis of pregnancy, confinement and related medical conditions as acts of indirect gender base discrimination since these facts affect only women up to the present time.

- As per Art.5 of Discrimination in Employment and Occupation Convention, measures taken to meet the requirement of persons who need special protection for reasons to do with sex, age, disablement, family responsibility or social or cultural status shall not be deemed to be discrimination
- Positive action is seen as essential for the achievement of genuine equality between women and men in the world of work and society.
- This includes corrective actions such as setting targets for women's participation in activities from which they have previously been excluded, or promotional measures designed to give women access to wider opportunities.

Right to Employment, a Human right of women

UDHR:- Art. 23(1) recognized the right of every one, women as well as men, to work

- any act that prevent women from participating in labor market amount to violation of human rights of women

ICESCR:- Article 6 State the right of every one, both men and women, to work and to get the opportunity to gain his/ her living by work

- Equal payment for equal work

ACHPR:- Art. 15 guarantee to every one the right to work and as per Article 2 the right shall be enjoyed without distinction of any kind including sex

FDRE Constitution:- Article 34 of expressly recognized the right of women to equality in employment

Women Right to Equal remuneration

- The right of women to equal remuneration is a right recognized under various international, regional and national laws
- UDHR 23(2), ICESCR Art. 7, Equal Remuneration Convention of ILO, 1951 Art. 1 and 2, ACPHR Art. 25,

Equal Remuneration Convention, 1951

- the convention imposed duty on all states members to ILO which ratifies the convention to promote and ensure the application to all workers of the principle of equal remuneration for men and women workers for works of equal value.

- As per Art.1 (a) of the convention, remuneration includes ordinary, basic or minimum wage or salary and any additional emoluments whatsoever payable directly or indirectly, whether in cash or in kind, by the employer to the worker and arising out of the worker's employment
- The convention further obliged state members to legally establish and organize machinery for wage determination
- differential rate of wage between workers which correspond to difference in the work to be performed shall not be considered as being contrary to the principle of equal remuneration for men and women workers for work of equal value

Maternity protection:-

- Motherhood and childhood are protected by different international regional and national laws
- The right to care and assistance to which motherhood and childhood are entitled includes **the right to health protection**, the right to maternity leave, the right to leave in case of illness and complication and the right to employment protection and non-discrimination
- The right to health protection is aimed protecting pregnant or breastfeeding women from being obliged to perform work which is prejudicial to the health of the mother or the child, or which involves a significant risk to the mother's health or that of her child

- Maternity leave is leave in relation to child birth.
- It is a right guaranteed to women upon the production of medical or other certificate, as determined by national law or practice, which state the presumed date of child birth
- Almost all international laws failed to state the period of maternity leave; hence the period varies from jurisdiction to jurisdiction, except one
- Maternity leave includes prenatal and post natal leave.
- Women are also entitled to leave after or before maternity leave in case of illness, complications or risk of complications arising out of pregnancy or childbirth
- Women are also entitled to employment protection that the employer can not legally terminate the employment relationship during her pregnancy or absence on maternity leave or leave in case of absence for this reason.
- He can terminate for any other law full reason but he has the duty to bear the burden of proof

Sexual harassment in work place

- A woman who is victimized by sexual harassment is subjected to pressure, degradation or hostility that her male co-workers don't have to endure
- Due to unequal gender relations, it is a phenomenon that primarily affects them, and creates distinction, exclusion or restriction which has the effect of impairing or nullifying their human rights
- It is not possible to exhaustively list the range of offending behavior constituting sexual harassment or define the degree of severity or its frequency

- They encompass acts ranging from sexual assault., display or distribution of pornography, suggestive gestures, physical contact, repeated proposition for dates or sexual favors, comments on appearance or comments of sexual nature relating to the victim to a third party and so on , all of which are unwelcome by the victim
- Perpetrators of sexual harassment are traditionally employers, superiors or co-workers
- Women are particularly vulnerable to victimization through sexual harassment since the majority of them occupy jobs with low security, low pay, and low conditions of work, low status, and low bargaining power

- Studies on sexual harassment cases and experiences of women have shown two dominant categories:

1. **Quid pro quo Harassment**

- it involves making conditions of employment (hiring, firing, promotion, retention etc.) contingent on the victim providing sexual favors

2. **Hostile Working Environment Harassment**

Sexual harassment whether verbal, physical or visual, has been acknowledged as affecting and unreasonably interfering with an individual's job performance or creating an intimidating, hostile or offensive working environment

International Human Rights Standards

1.CEDAW

- Article 2(e), states parties are obliged to “take all appropriate measures to eliminate discrimination against women by any person, organization or enterprise
- Article 15 of the convention affirms the general principle that States “shall accord to women equality with man before the law
- Article 11 States parties shall take all appropriate measures to eliminate discrimination against women in the field of employment
- In 1992, the CEDAW committee went one step further by formulating and adopting General Recommendation No. 19 which expressly recognizes sexual harassment as humiliating and may constitute a health and safety problem

- The committee defines sexual harassment as an “unwelcome sexually determined behavior (such) as physical contact and advances, sexually colored remarks, showing pornography and sexual demands, whether by words or actions
- ✦ **ICESCR Art. 7, ICCPR Article 17 , Art. 26, UDHR Art.2, 23(1)**
- ✦ **ILO Discrimination (Employment and occupation) Convention** no clear provision on sexual harassment but prohibit any discrimination against women in Employment
- ✦ **UN Declaration of Violence against Women 1993:-** it states, “violence against women shall be understood to encompass, but is not limited to, the following: physical, sexual and psychological violence occurring in the general community, including sexual harassment and intimidation at work.

The Beijing Declaration and the Beijing Platform for action

- It includes sexual harassment and intimidation in its definition of violence against women
- the experience of sexual harassment is an affront to a worker's dignity and prevents women from making a contribution commensurate with their abilities
- the BPFA recommends that states enact and enforce laws and develop workplace policies against gender discrimination in the labor market, especially regarding discriminatory working conditions and sexual harassment
- It notes that “sexual harassment is incompatible with the dignity and worth of the human person and must be combated and eliminated
- It also highlighted the persistence of discriminatory legislation and the continuing existence of legislative and regulatory gaps that failed to provide women with adequate protection
- the failure of states to fully implement all measures necessary to secure for women, safe, healthy and equitable working environments

Chapter Seven

Political Participation of Women



- It means women's ability to participate equally with men, at all levels, and in all aspects of political life and decision making
- Women's participation in formal political structures and processes, where decisions regarding the use of societal resources generated by both men and women are made, remains insignificant
- Presently, women's representation in legislatures around the world is 15%,
- there are countries where in the participation of women in politics goes to 33%

- women's participation in public life and decision making varies from country to country depending on the work done by countries to:



1. raise women's awareness of their rights and how to claim them
2. provide access to information about laws, politics and institutions and structures which govern their lives
3. raise women's confidence, self-esteem and the skills so that they themselves challenge and confront existing power structures
4. Support networks and positive role models
5. Create an enabling environment, meaning to create a political, legal, economic and cultural climate that allows women to engage in decision making process in sustainable and effective way

Women's right to participate in politics as a human right

- To enhance the political participation of women, many international human rights documents as well as national constitutions and laws enshrined provision that recognize the right of women to equally participate in politics

UDHR:- Article 21 recognized the right of every one, including both women and men, to take part in the gov't of their country, directly or through freely chosen representative

ICCPR:- 25 of ICCPR guarantees all citizens to take part in the conduct of public affairs without discrimination on the ground of, among others, sex.

- It assure all citizens, men as well as women, to vote and to be elected at genuine public election

CEDAW:- it elaborate the nature of women's political rights and the steps required to promote greater equality b/n women and men in this area

Beijing Platform for Action

- States **women empowerment** and **autonomy of women** and the improvement of women's social, economic and political status is essential for the achievement of both transparent and accountable gov't and administration and sustainable dev't in all areas of life

PACPHRWA:-

- impose obligation on state parties to promote participative governance and the equal participation of women in the political life of their countries through **affirmative action, enabling national legislation** and other measures

- ensure the participation of women in national elections without discrimination, 
- equal representation of women at all electoral process with that of men,
- partnership of women with men at all levels of development and implementation of state policies and development programmers

The FDRE Constitution:- guarantee women equal right with that of men to equally participate in politics

Art. 38, Art.35

The two main reasons that justify the promotion of women's participation in public life

1. **the intrinsic argument:-** equal participation of women in politics forms the human rights perspective
 - women constitute half of the world population and therefore, it is only fair that they should have equal participation and representation in world democracies
2. **the instrumentalist argument:-** women have d/t vision and concepts of politics owing to their sex and their gender role as a mother.
 - therefore they assume that women in politics will bring a special caring focus and female values to politics.

Factors Hindering Women's Political participation

1. **Ideological factors:-** Patriarchy as a system of male domination shapes women's relationship in politics
 - It place women within the private arena of home as mothers and wives and men in the public sphere
2. **Political Factors:-** public-private dichotomy in traditional definition of politics is used to exclude women from public political sphere
 - Male domination of politics, political parties and culture of formal political structures is another factor that hinders women's political participation
 - Is the democracy shaped by secular or religious ideology
3. **Socio-Cultural Factor:-** The subordinate status of women
 - female sex is generally valued less than male sex because of their socially ascribed roles in the reproductive sphere

- Women also find it hard to participate in politics due to the limited time available to them because of their dual roles in the reproductive sphere

4. **Economic Factors:-** Politics is increasingly becoming commercialized. More and more money is needed to participate in politics.

- Women lack access to and ownership of productive resource, which in turn limits the scope of their political work

5. **Lack of Social Capital and Political Capacities:-** because they are often not head of communities, tribes or kinship groups, resulting in the absence of constituency base for them and

- means of political participation such as political skills, economic resources, education, training and access to information.

Strategies for women's political participation

1. Quotas Argument for and against

- gender quota is an effective tool in addressing women's exclusion and ensuring their presence in formal structure of politics

Criticism:- Without addressing the structural constraints to women's political exclusion, their inclusion through gender quota cannot lead to an effective representation.

- In addition to quota it involve a redistribution of socio-economic resources within societies
- The domination of elite women in political structures due to state quotas calls for locating the gender quota within the framework of diversity and difference to ensure women's political empowerment
- Changing the perception of the society is needed
- Empowerment of women should first

2. Enabling environment for women participation in politics and development

- equal participation of women in politics can be achieved when socio-cultural, political and economic structural barriers are changed
- Raising Women's consciousness of their political rights
- A strong women's movement and civil society

Participation of Ethiopian Women in Public Life and Decision Making

- Ethiopia is one of the countries wherein women's participation in politics is minimal due to the factors dealt here in above

Measure taken by the Ethiopian government

1. Ratification of CEDAW
2. FDRE constitution:- Article 38 the right of every Ethiopian to participate in public affairs, to vote and to be elected to any office at any level of government and to be a member of any political organizations, labor union, trade organization and etc; without discrimination on the ground of sex
3. Constitution entitled women to affirmative measures in politics, under Article 35(3)
4. the government initiated various policies and strategies such as the National Policy on Women of 1993
5. Efforts have also been made both by governmental and non governmental organizations to disseminate women rights information to the people including, but not limited to, women's right to participate in politics equally with that of men.

- The translation of Human Rights Conventions which enshrined provision that recognize women's right to participate in politics into working local language and
- the improvement in the education of gender issues in media
- The increase in the number of women both in the House of Peoples Representatives and House of Federation, in almost all political parties and the state councils

Chapter Eight

Reproductive Rights of women

reproductive health rights include:

- The right to legal or safe abortion ;
- The right to control one's reproductive functions;
- The right to access quality reproductive health care and
- The right to education and access in order to make reproductive choice free from coercion, discrimination and violence.

As per Article 14 of Protocol to the African Chapter on Human and People's Right on the Rights of Women in Africa, reproductive right is a right that includes:

- The right to control one's fertility;
- The right to decide whether to have children, the number of children and the spacing of children;
- The right to chose any method of contraception;
- The right to self-protection and to be protected against sexually transmitted infections, including HIV/AIDS;
- The right to be informed on one's health status and on the health of one's partner, particularly if affected with sexually transmitted infections including HIV/AIDS in accordance with internationally recognized standards and best practices and
- The right to have family planning education.

Reproductive Health Right as a Human Right

Teheran Declaration:- recognized reproductive right as a subset of human right and states that parents have a basic human right to determine freely and responsibly the number and the spacing of their children

CEDAW:- Article 11(1) F and (2) affirmed the right to family planning and maternity health and have accepted the legally binding obligation to protect these rights and safeguard women's reproductive right

PACPHRWA:- Provide adequate, affordable and accessible health services, including information, education, and communication programmes to women especially those in rural areas

➤ Establish and strengthen existing pre-natal, delivery and post natal health and nutritional service for women during pregnancy and while they are breast feeding and

- Protect the reproductive rights of women by authorizing medical abortion in cases of sexual assault, rape incest, and where continued pregnancy endangers the mental and physical health of the mother or the life of the mother or the fetus

The FDRE Constitution:- Article 35(9) recognized women's rights of access to family planning education, information and capacity.

- it guaranteed women the right to prevent harm arising from pregnancy and childbirth.

Abortion as Human Rights

- **Religious outlook:-** Major religions such Catholics, Hinduism, Buddhism and Humanists condemn abortion and consider it as a deliberate taking away of life that should be prohibited upon punishment
- **Women right activist:-** advocates of women's rights support the legality of abortion
- Where abortion is illegal and unsafe, women are forced to carry unwanted pregnancy or suffer serious health consequences and even death.
- Approximately 3% of maternal death world wide are attributed to unsafe abortion

- Women's access to safe and legal [abortions](#) is restricted in law or in practice in most countries in the world.
- Even where [abortion](#) is permitted by law, women may only have limited access to safe abortion services.
- Only a small number of countries prohibit abortion in all cases.
- In most countries and jurisdictions, abortion is allowed to save the pregnant woman's life, or where the pregnancy is the result of [rape](#) or [incest](#)

Abortion in Ethiopia

- Unsafe abortion, according to the FDRE government report, is the fifth leading cause of hospital admission and the second leading cause of death among hospitalized women in Ethiopia
- Article 545(1) of the revised Criminal Code of 2004 considered intentional termination of pregnancy as a criminal act.
- However, the exceptional situations have been put in wider context. Accordingly termination of pregnancy is not punishable in Ethiopia if:
 1. The pregnancy is the result of rape or incest;
 2. The continuation the pregnancy endangers the health or life of the mother or the child or where the birth of the child is a risk to the life or health of the mother;

3. Where the pregnant women owing to a physical or mental deficiency or minority is physically as well as mentally unfit to bring up the child
- Moreover, Article 550 of the criminal code stated that the court shall mitigate the punishment put under the law, where the pregnancy has been terminated on the account of poverty.